

HOUSE No. 4114

The Commonwealth of Massachusetts

PRESENTED BY:

Russell E. Holmes and Bud L. Williams

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to unsolved homicides.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Russell E. Holmes</i>	<i>6th Suffolk</i>	<i>1/15/2025</i>
<i>Patrick Joseph Kearney</i>	<i>4th Plymouth</i>	<i>4/16/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/25/2025</i>
<i>Carlos González</i>	<i>10th Hampden</i>	<i>9/10/2025</i>
<i>Dennis C. Gallagher</i>	<i>8th Plymouth</i>	<i>10/14/2025</i>

HOUSE No. 4114

By Representatives Holmes of Boston and Williams of Springfield, a petition (accompanied by bill, House, No. 4114) of Russell E. Holmes and Patrick Joseph Kearney relative to unsolved homicides. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to unsolved homicides.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 12 of the General Laws is hereby amended by adding the following
2 section:-

3 Section 36. (a) There shall be within the office of the attorney general an office of
4 unsolved homicides. Said office shall coordinate with statewide unsolved murders task force to
5 address homicides committed within the commonwealth that remain unsolved longer than 3
6 years after their occurrence.

7 (b) As used in this section, the following words shall, unless the context clearly appears
8 otherwise, have the following meanings:-

9 "Immediate family member", a parent, parent-in-law, grandparent, grandparent-in-law,
10 sibling, spouse or person in a substantive dating relationship or engagement relations, child or
11 stepchild.

(c) Immediate family members of Massachusetts homicide victims whose homicides have gone unsolved for longer than 3 years shall have the right to petition the office of unsolved homicides via written application to determine if a full reinvestigation would result in either the identification of probative investigative leads or a likely perpetrator.

(d) The office of unsolved homicides shall report back to the immediate family member in writing within 90 days of receiving the written application outcome of the case review. The review shall include, but not be limited to:

(1) an analysis of the investigation of the case including what investigative steps or follow-up steps might have been missed in the initial investigation;

(2) an assessment of whether witnesses should be interviewed and reinterviewed;

(3) an examination of physical evidence to see if all appropriate forensic testing and analysis was performed in the first instance or if additional testing might produce information relevant to the investigation; and

(4) an update of the case file using the most current investigative standards as of the date of the review to the extent that it would help develop probative leads.

(e) The attorney general shall develop policies and promulgate regulations necessary to the implementation of this section.

SECTION 2. Chapter 6 of the General Laws is hereby amended by inserting after section 184A the following 3 sections:-

Section 184B. (a) There shall be a statewide unsolved homicides task force, hereinafter referred to as the task force, to investigate and prosecute unsolved homicides in the

commonwealth. The task force shall consist of the following members or their designees: the attorney general, and the President of the Massachusetts District Attorney Association, who shall serve as co-chairs; the secretary of public safety and security; the colonel of state police; the chief of police for Boston, Worcester and Springfield; the chief counsel of the committee for public counsel services; the district attorney for each county; and 3 representatives from the survivor community who shall be appointed by the governor.

(b) The task force shall establish teams of investigators and other professionals with expertise in unsolved homicides to assist the district attorneys in each county in reviewing and pursuing unsolved homicide cases. The teams shall include, but not be limited to, state police detectives, detectives from Boston, Springfield, and Worcester police department, forensic scientists, crime analysts, victim advocates and defense attorneys. The teams shall have access to all relevant records, evidence and databases related to unsolved homicides, including those maintained by local, state and federal law enforcement agencies.

(c) The task force shall establish a toll-free tip line and a website for anyone to report information about unsolved homicides in Massachusetts. The tip line and the website shall be operated by the attorney general's office in collaboration with the state police, the Boston, Worcester, Springfield Police Department and the district attorneys. The tip line and the website shall ensure the confidentiality and anonymity of the callers and users, unless they choose to disclose their identity. The tip line and the website shall also provide information on rewards, if any, for providing information that leads to an arrest or conviction in an unsolved homicide case.

(d) The task force shall meet at least quarterly to review the progress and challenges of the teams, share best practices and resources, coordinate interagency cooperation, and identify

55 legislative or policy changes that may enhance the investigation and prosecution of unsolved
56 homicides. The task force shall also provide training and technical assistance to local law
57 enforcement agencies on unsolved homicide investigations.

58 (e) The task force shall submit an annual report to the governor, the president of the
59 senate, the speaker of the house of representatives, and the chairs of the joint committee on
60 public safety and homeland security on or before December 31 of each year. The report shall
61 include, but not be limited to, the following information: (i) the number of unsolved homicides in
62 the commonwealth; (ii) the number of unsolved homicide cases reviewed and pursued by the
63 teams; (iii) the number of arrests, indictments, convictions, and acquittals resulting from the
64 work of the teams; (iv) the challenges and barriers faced by the teams in investigating and
65 prosecuting unsolved homicides; (v) the recommendations for improving the effectiveness and
66 efficiency of the task force and its teams; and (vi) any other information deemed relevant by the
67 task force.

68 Section 184C. (a) There shall be a state-wide database of unsolved homicides, hereinafter
69 referred to as the database, to collect, store, and share information on all homicides that remain
70 unsolved in the commonwealth. The database shall be maintained by the attorney general's office
71 in collaboration with the statewide unsolved homicides task force established under section
72 184B.

73 (b) The database shall include, but not be limited to, the following information for each
74 unsolved homicide case: (i) the name, age, gender, race, and other identifying characteristics of
75 the victim; (ii) the date, time, location, and manner of death; (iii) the cause and nature of the
76 injuries; (iv) the status and history of the investigation; (v) any physical evidence, forensic

analysis, or DNA profiles; (vi) any suspects, persons of interest, witnesses, or informants; (vii) any rewards offered or tips received; and (viii) any other information deemed relevant by the attorney general or the task force.

(c) The attorney general shall establish rules and regulations for the operation and administration of the database, including but not limited to: (i) the criteria and procedures for entering, updating, verifying, and deleting data; (ii) the standards and protocols for ensuring the accuracy, security, and confidentiality of data; (iii) the criteria and procedures for accessing, searching, and retrieving data; (iv) the criteria and procedures for sharing and exchanging data with other law enforcement agencies, criminal justice entities, or authorized persons; and (v) the criteria and procedures for reporting and auditing data.

(d) The attorney general shall ensure that the database is compatible and interoperable with other existing or future databases related to unsolved homicides, such as those maintained by the Federal Bureau of Investigation, the National Institute of Justice or other states.

(e) The attorney general shall submit an annual report to the governor, the president of the senate, the speaker of the house of representatives, and the chairs of the joint committee on public safety and homeland security on or before December 31 of each year. The report shall include, but not be limited to, the following information: (i) the number and characteristics of unsolved homicide cases entered into the database; (ii) the number and characteristics of unsolved homicide cases solved or cleared with the assistance of the database; (iii) the number and characteristics of unsolved homicide cases shared or exchanged with other databases or agencies; (iv) the challenges and barriers faced by the attorney general or the task force in maintaining and utilizing the database; (v) the recommendations for improving the effectiveness

and efficiency of the database; and (vi) any other information deemed relevant by the attorney general or the task force.

Section 184D. (a) There shall be established and set up on the books of the commonwealth a separate fund to be known as the Unsolved Homicides Task Force Fund, hereinafter referred to as the fund. The fund shall consist of revenues collected by the commonwealth from the following sources: (i) any federal grants or awards received by the commonwealth for the purpose of investigating and prosecuting unsolved homicides; (ii) any private donations or contributions made to the commonwealth for the purpose of investigating and prosecuting unsolved homicides; (iii) any funds appropriated by the general court for the purpose of investigating and prosecuting unsolved homicides; (iv) any interest earned on such revenues; (v) and an annual 15 per cent payment of all asset forfeiture funds from each district attorney.

(b) The fund shall be administered by the attorney general, who shall serve as the trustee of the fund. The attorney general shall expend such amounts from the fund as he or she deems necessary to support the operations and activities of the statewide unsolved homicides task force established under section 184B of chapter 6. The attorney general shall also seek to maximize the amount of federal funding available for the task force by applying for grants and awards from various federal agencies, including but not limited to, the Office for Victims of Crime, the National Institute of Justice, the Office of Justice Programs, all within the Department of Justice, and the Department of the Interior.

(c) The attorney general shall submit an annual report to the governor, the president of the senate, the speaker of the house of representatives, and the chairs of the joint committee on

121 public safety and homeland security on or before December 31 of each year. The report shall
122 include, but not be limited to, the following information: (i) the amount and source of revenues
123 deposited into the fund; (ii) the amount and purpose of expenditures made from the fund; (iii) the
124 status and outcome of any federal grant or award applications submitted by or on behalf of the
125 task force; and (iv) any other information deemed relevant by the attorney general.

126 SECTION 3. Not later than June 30, 2026, the comptroller shall transfer \$10,000,000
127 from the General Fund to the Unsolved Homicides Task Force Fund established in section 184D
128 of chapter 6 of the General Laws.